

CODE

Appeals and complaints

Draft for member review | 29 September 2026

Plain language summary

Three electors, not on council, decide complaints in writing. Council cannot overturn them. An appeal to the same council that made the decision is not a check. A court can still stay a decision.

Working draft. Not adopted law. Not a court. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose

1.1 This instrument is the appeal body. Council does not hear appeals from its own decisions.

Part 2. Who sits

2.1 The body is three electors elected under constitution section 6.2, for three years. A member of the body who becomes a candidate for council must resign from the body within 2 days of being nominated. If they do not, the seat is vacant on day 3.

2.2 Quorum is two. A member of the body who is immediate family of a party, or who took part in the decision under appeal, must not sit. If two members are disqualified, any 10 electors may appoint a qualified elector in writing for that file only, within 14 days. If they do not, the file waits, and the records officer posts that fact on day 15.

2.3 The First Nation must pay each member of the body the posted stipend, which is set by elector vote and not by council. A council resolution that cuts the stipend during a term is void.

Part 3. Complaints

3.1 A member may complain in writing within 60 days of learning of the decision, and not later than 1 year after the decision. The complaint must state the date, the decision, the section, and what order is asked for.

3.2 The body must give the decision maker 14 days to respond in writing. The body must then decide within 30 days after the response period, even if no response is filed.

3.3 The body may dismiss a complaint that states no section and no fact, within 15 days, with reasons. That dismissal is not reviewed by council. A court may review it.

3.4 A decision of the body must be in writing, must cite the section, and must state the order. Orders may include: declare a resolution void, order repayment by a stated day, bar a person from a class of decisions for a stated period, suspend or restore a benefit, or remove a person from office or employment where another instrument in this set authorizes removal.

3.5 The body must post the decision within 3 days. It must not post another member's health information or the text of a false accusation.

3.6 The decision stands unless a court stays it. Council must not overturn it. A resolution that purports to overturn it is void, and each councillor who voted for it must not move a money resolution for 90 days.

Part 4. The body's own deadlines

4.1 If the body misses a deadline in this set, the records officer must post the miss on the next day. If three deadlines are missed in one year, any 10 electors may call a vote, on 21 days' notice, to remove the body and elect a new one. Removal takes effect when the new body is elected.

Part 5. Amendment

5.1 Council must not amend this appeals instrument by resolution. A resolution that purports to amend it is void on the day it is signed. A person who signs that resolution must not move a money resolution for 90 days. The appeal body must post the breach within 14 days.

5.2 An amendment passes only if a majority of all electors vote yes. A majority of the ballots cast is not enough. The Indian Act, section 2(3)(a), uses that same count for a power of the band: consent of a majority of the electors.

5.3 The electoral officer must post the full proposed text at least 45 days before the vote and must certify the elector list 30 days before the vote. A vote held on shorter notice is void.

5.4 The electoral officer must post the count within 3 days. If the count in 5.2 is not met, the amendment does not come into force.

Part 6. Review and coming into force

6.1 The appeal body must review this appeals instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this appeals instrument.

6.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 5, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

6.3 this appeals instrument comes into force on the day after the electors approve it under Part 5. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

6.4 Where a law already in force sets its own replacement rule, this appeals instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

6.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.